

## Amended Excerpts

## 1. Line 43 through 49:

43 accordance with the requirements of Section 77-36-2.1.  
 44 (3) (a) If a law enforcement officer receives complaints of domestic violence offenses  
 45 from two or more opposing persons, the officer shall evaluate each complaint  
 46 separately to determine who the predominant aggressor was  $\hat{S} \rightarrow [ \{ \text{in the situation} \} ] \leftarrow \hat{S}$  .  
 47 (b) If the officer determines that one person was the predominant physical aggressor, the  
 48 officer need not arrest the other person alleged to have committed ~~[domestic violence]~~  
 49 a domestic violence offense.

## 2. Line 79 through 92:

79 [(iii) is a public record as defined in Section 63G-2-103.]  
 80 [(d)](b) The incident report shall be made available to the victim, upon request, at no  
 81 cost.  
 82 [(e)  $\hat{S} \rightarrow$  (c) The law enforcement agency shall forward a copy of the incident report to  
 82a the  
 83 appropriate prosecuting attorney within five days after the day on which  
 83a the  
 84 complaint of domestic violence occurred.  
 85 [ { (d) If a peace officer did not arrest, or issue a citation to, an individual alleged to have } ]  
 $\leftarrow \hat{S}$   
 86  $\hat{S} \rightarrow [ \{ \text{committed a domestic violence offense as described in Subsection (2), the law} \} ] \leftarrow \hat{S}$   
 87  $\hat{S} \rightarrow [ \{ \text{enforcement agency shall assign a peace officer to complete the investigation of the} \} ]$   
 $\leftarrow \hat{S}$   
 88  $\hat{S} \rightarrow [ \{ \text{alleged domestic violence offense within 48 hours after the time at which the call} \} ] \leftarrow \hat{S}$   
 89  $\hat{S} \rightarrow [ \{ \text{regarding the domestic violence offense was made.} \} ]$   
 90 [ { (e) } ](c)  $\leftarrow \hat{S}$  If there is  $\hat{S} \rightarrow [ \{ \text{evidence} \} ]$  probable cause  $\leftarrow \hat{S}$  that a domestic  
 90a violence offense was committed, a law  
 91 enforcement agency shall submit the appropriate charge for the offense to the  
 92 prosecuting agency within five business days after the day on which the domestic